

26STCV06362 26STCV06362

County: los-angeles

Division: Civil Law and Motion

Department: 733

Hearing date: 2026-09-15

Motion: DEFENDANT'S MOTION TO QUASH SERVICE OF SUMMONS AND COMPLAINT

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C733%2C09%2F15%2F2026

Source SHA-256: 8bc17636811ddf01324e810c2c1648b6d89b5fb912766e78df0561c9caf738a7

Case Number: 26STCV06362 Hearing Date: September 15, 2026 Dept: 733

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR

THE COUNTY OF LOS ANGELES

MARINA

BOGIN,

Plaintiff,

vs.

VITO

TERUNA, aka HADRIAN TERUNA; and DOES 1 to 20, inclusive,

Defendants.

)

)

)

)

)

)

)

)

)

)

)

CASE NO.: 26STCV06362

[TENTATIVE] ORDER RE: DEFENDANT'S MOTION
TO QUASH SERVICE OF SUMMONS AND COMPLAINT

Dept. 733

8:30 a.m.

September 15, 2026

I.
INTRODUCTION

This is an
unlawful detainer action.

On February
26, 2026, Plaintiff Marina Bogin ("Plaintiff") filed an Unlawful Detainer
complaint against Defendant Vito Teruna aka Hadrian ("Defendant").

On March 13,
2026, specially appearing Defendant filed the instant motion to quash service
of summons and complaint.

On September
1, 2026, Plaintiff filed an opposition.

No reply was
filed.

II.

LEGAL STANDARD

“Service of process, under longstanding tradition in our system of justice, is fundamental to any procedural imposition on a named defendant.’ [Citation.]” (AO Alfa-Bank v. Yakovlev (2018) 21¿Cal.App.5th 189, 202.) “To establish personal jurisdiction, compliance with statutory procedures for service of process is essential.” (Kremerman v. White (2021). 71 Cal.App.5th 358, 371.) Defendant’s knowledge of the action does not dispense with statutory requirements for service of summons. (Kappel v. Bartlett (1988) 200 Cal.App.3d 1457, 1466.)

“A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow” may move “to quash service of summons on the ground of lack of jurisdiction of the court over him or her” that results from lack of proper service. (Code of Civ. Proc., § 418.10, subd. (a)(1)). A defendant has 30 days after the service of the summons to file a responsive pleading. (Code Civ. Proc., § 412.20, subd. (a)(3).)

Once a challenge to the court’s personal jurisdiction is filed, “the burden of proof is placed upon the plaintiff to establish the facts of jurisdiction by a preponderance of the evidence. This may be done through presentation of declarations, with opposing declarations received in response.” (CenterPoint Energy, Inc. v. Superior Court (2007) 157 Cal.App.4th 1101, 1118 (citing Aquila, Inc. v. Superior Court (2007) 148 Cal.App.4th 556, 568).) “When a defendant challenges the court’s personal jurisdiction on the ground of improper service of process ‘the burden is on the plaintiff to prove the existence of jurisdiction by proving, inter alia, the facts requisite to an effective service.’” (Summers v. McClanahan¿(2006) 140¿Cal.App.4th 403, 413.)

III.

DISCUSSION

Here, Defendant moves to quash service of summons and complaint, on the basis of lack of personal jurisdiction due to ineffective service pursuant to Code of Civil Procedure § 415.20.

Under California law, service of process of a summons and complaint may be made “by delivering a copy of the summons and complaint to the individual defendant personally.” (Code Civ. Proc., § 415.10; Board of Trustees of Leland Stanford Junior University v. Ham (2013) 216 Cal.App.4th 330, 336 (citing Evarrt v. Superior Court (1979) 89 Cal.App.3d 795, 799) [“The preferred way to serve a defendant, of course, is by personal delivery as prescribed in section 415.10, as this is the most likely to ensure actual notice to the defendant.”].)

However, “[i]f a copy of the summons and complaint cannot with reasonable diligence be personally delivered to the person to be served, as specified in Section 416.60, 416.70, 416.80, or 416.90, a summons may be served by leaving a copy of the summons and complaint at the person’s dwelling house, usual place of abode, usual place of business, or usual mailing address other than a United States Postal Service post office box, in the presence of a competent member of the household or a person apparently in charge of his or her office, place of business, or usual mailing address other than a United States Postal Service post office box, at least 18 years of age, who shall be informed of the contents thereof, and by thereafter mailing a copy of the summons and of the complaint by first-class mail, postage prepaid to the person to be served at the place where a copy of the summons and complaint were left. Service of a summons in this manner is deemed complete on the 10th day after the mailing.” (Code Civ. Proc. § 415.20, subd. (b).) Reasonable diligence has been described as “denot[ing] a thorough, systematic investigation and inquiry conducted in good faith by the party or his agent or attorney.” (Kott v. Superior Ct. (1996) 45 Cal.App.4th 1126, 1137.)

Here, in Plaintiff’s Proof of Service of the summons and complaint filed on June 9, 2026, the process server provides that he effectuated substitute serve on February 28, 2026 at 8:00am. The process server provides that he left the documents with “JOHN DOE (CAROL) (Gender: M Age: 30 Height: S’S” Weight: 120 Race: WHITE Hair: LIGHT Other:) CO OCCUPANT” at 418 N Serrano Avenue, Los Angeles, CA 90004, which the process server provides is the “dwelling house or usual place of abode” of Defendant. In the Declaration of Reasonable Diligence,

the process server attempted to serve the documents at 418 N Serrano Avenue on three separate occasions prior to service being effectuated: February 26, 2026 at 7:10pm; February 27, 2026 at 7:57am; and February 28, 2026 at 7:59am. On the third attempt at service, the process server provides that according to the co-occupant, "subject is not home." The co-occupant was then served on February 28, 2026 at 8:00am. The process server then mailed a copy of the summons and complaint to the same address pursuant to Code of Civil Procedure section 415.20(b)

"The return of a [registered] process server ... establishes a presumption, affecting the burden of producing evidence, of the facts stated in the return." (Evid. Code § 647; see also *Floveyor Internat., Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 795 [filing of proof of service that complies with the applicable statutory requirements creates a rebuttable presumption of proper service].) "Because of the statutory presumption, [Defendant is] thus required to produce evidence that he was not served." (*Am. Express Centurion Bank v. Zara* (2011) 199 Cal.App.4th 383, 390.)

Here, Defendant declares that he was not properly served with the summons and complaint. He declares that "[o]n or about February 28, 2026, [he] first became aware of the existence of this action when a subtenant at the property informed [Defendant] that he had been given some type of legal papers at the property located at 418 N. Serrano Avenue, Los Angeles, California. This is a property where [Defendant has] subleased individual units and rooms. Prior to that date, [Defendant] had not received any direct notice of this action, nor had [he] been personally served with any legal documents related to this matter." (Teruna Decl., ¶ 3.) From late February 2026 to present, Defendant "was not served personally or served at all with the Summons and Complaint in this matter even though [he has] resided at all times at a tri-plex in Log Angeles, CA from February 2024 to the present." (*Id.* ¶ 4.) Defendant further declares that he does not "utilize the sub-leased property herein] as either my residence or place of business and never have." (*Id.* ¶ 5.)

The only evidence that Defendant provides is a self-serving and uncorroborated declaration that he was not personally served and that he actually resides at an unidentified apartment complex different from where service was effectuated. (See Teruna Decl.) "The trial court [is]

not required to accept this self-serving evidence contradicting the process server's declaration[.]" (Am.

Express Centurion Bank v. Zara, supra, 199 Cal.App.4th

at p. 390; Rodriguez v. Cho (2015) 236 Cal.App.4th 742, 751 [court "

'was not required to accept this self-serving evidence' "]; Lee v. Yan

(2025) 115 Cal.App.5th 975, 978–979 [presumption of proper service not rebutted

by "incredible" declaration disputing service].) The process server provides

that service was attempted at 418 N Serrano Avenue multiple times, until

service was effectuated on a co-occupant, who, according to the process server,

provided that Defendant was not home,

insinuating that Defendant indeed resided at that address.

This case is unlike Ahmed v. Collect Access, LLC (2025) 114 Cal.App.5th

1092. There, the appellate court found that the trial court erred in finding

that the defendant's declaration, asserting that he never lived or received

mail at the address where service was effectuated and never conducted business

or worked there, did not rebut the presumption of proper service. (Id. at

pp. 1096-1097.) Similarly, the process server gave the summons and complaint to

a co-occupant, but the defendant also attested that he never resided at the

address where service was effectuated. (Id. at p. 1099.) However, there,

the defendant, unlike Defendant here, declared where he actually was

residing, declaring that he was "homeless" and "primarily living in [his]

car[.]" (Id. at p. 1096.) The defendant also declared that he did not

have actual notice of lawsuit until many years later. (Ibid.) In

contrast, Defendant here does have actual notice of the lawsuit. (See Gible v. Car–Lene Research, Inc.

(1998) 67 Cal.App.4th 295, 31 ["[i]t is well settled that strict compliance

with statutes governing service of process is not required. Rather, in deciding

whether service was valid, the statutory provisions regarding service of

process should be liberally construed to effectuate service and uphold the

jurisdiction of the court if actual notice has been received by the

defendant."; see also Dill v. Berquist Construction Co. (1994) 24

Cal.App.4th 1426, 1436 ["[S]trict compliance is not required."].)

As such, the Court does not find that

Defendant has sufficiently rebutted the statutory presumption of facially

proper service. (See People v. Chavez (1991) 231 Cal.App.3d 1471, 1483

["If some fact be presumed, the opponent of that fact bears the burden of

producing or going forward with evidence sufficient to overcome or rebut the

presumed fact"].)

Defendant's
motion is denied.

IV.

CONCLUSION

Based
on the foregoing, Defendant's motion to quash service of summons and complaint

is DENIED. Defendant is
to file an answer or other responsive pleading within thirty (30) days of this
order.

Dated this 15th
day of September 2026

Hon. Gary D.
Roberts

Judge of the
Superior Court